

Stereo HCJDA 38
JUDGMENT SHEET
IN THE LAHORE HIGH COURT
BAHAWALPUR BENCH BAHAWALPUR
(JUDICIAL DEPARTMENT)

Writ Petition No.8293 of 2025

Iftikhar Ahmad

Vs.

Government of the Punjab, etc.

Petitioner by:- M/s. Muhammad Asif Mehmood
Pirzada and Zia Mehmood Pirzada,
Advocates.

Respondents by: Mr. Jamshed Iqbal Khakwani,
Assistant Advocate General, Punjab.

Ms. Samina Qureshi, Advocate for
respondent No.6 alongwith
respondent No.6, in person.

Date of hearing: - **30.04.2026**

JUDGMENT

RAHEEL KAMRAN, J:- Through this petition filed under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973, the petitioner has prayed as under:-

“It is therefore respectfully prayed that this Honourable Court may kindly set aside the impugned orders dated 17.11.2025 and 27.11.2025 as illegal and without lawful authority; direct the Respondents to restore and maintain the Petitioner’s appointment as Assistant Education Officer (BS-16) made on 27.04.2024; ensure release of his withheld salary from the date of joining till today and declare that Respondent No.6 is not eligible for appointment against the disable quota in light of the Medical Board’s findings, along with any other relief deemed just and proper in the circumstances by allowing this petition in the interest of justice.”

2. Briefly stated, the facts of the case are that recruitment for the post of Assistant Education Officer (BS-16) was made in District

Bahawalnagar in the year 2017, wherein, Muhammad Yar, respondent No.6 was appointed against a seat reserved for disabled quota. The petitioner, claiming himself to be eligible and next in merit, challenged the disability status of respondent No.6 through a series of proceedings before this Court and departmental forums as well. Ultimately, pursuant to directions issued by this Court, the matter was examined by the Director General, Social Welfare & Bait-ul-Maal, Punjab / respondent No.9, who, on the basis of expert opinion and recommendations of the Provincial Assessment Committee, passed order dated 01.11.2023 declaring respondent No.6 as not a disabled person.

Despite the aforesaid declaration regarding the disability status of respondent No.6, no consequential action was taken by the authorities nor did the petitioner receive any relief in terms of appointment. Aggrieved by such inaction, the petitioner approached respondent No.2 by way of an application and subsequently filed Writ Petition No.9676 of 2023 before this Court, which was disposed of vide order dated 08.12.2023 with a direction to respondent No.2 to decide the petitioner's application within a period of 30 days. In compliance thereof, respondent No.2 remanded the matter to respondent No.3 for decision, who subsequently issued appointment order dated 27.04.2024 in favour of the petitioner as Assistant Education Officer, Markaz No.18, Tehsil Fort Abbas, against a vacant post, without disturbing the appointment of respondent No.6. The petitioner assumed charge of the said post and performed his duties, however, his salary was not released. The District Accounts Officer, Bahawalnagar/respondent No.10, through a communication addressed to the Deputy District Education Officer (M-EE), Tehsil Fort Abbas, pointed out certain discrepancies in the petitioner's appointment. The said communication was responded to by respondent No.3, requesting respondent No.10 to authenticate and verify the appointment order; nevertheless, the issue of release of salary remained unresolved. Consequently, the petitioner filed Writ Petition

No.7804 of 2024, which was disposed of on 09.10.2025 with a direction to respondent No.2 to decide the matter regarding payment of salary. Pursuant thereto, respondent No.2, vide order dated 17.11.2025, dismissed the petitioner's representation, holding that his appointment had been wrongly made. In furtherance of the said order, respondent No.3 cancelled the petitioner's appointment vide order dated 27.11.2025. Aggrieved thereof, the petitioner has filed the instant petition.

3. It is contended by learned counsel for the petitioner that the impugned order dated 27.11.2025 whereby the petitioner's appointment was cancelled is unsustainable in law. He submits that the refusal has primarily been based on the premise that the post of Assistant Education Officer (AEO) was reserved for the disability quota and stood occupied by respondent No.6 / Muhammad Yar. According to him, such reasoning is misconceived as respondent No.6 was not lawfully appointed against the said quota. He maintains that the Provincial Assessment Committee and the duly constituted Medical Board, after fulfillment of all the legal and codal formalities, conclusively declared on 01.11.2023 that respondent No.6 is not a disabled person, hence, continuation of the said respondent on a post reserved for disability quota is illegal and contrary to the Punjab Disable Persons (Employment and Rehabilitation) Ordinance, 1981 (**"the Ordinance"**) as also the Recruitment Policy of the Government of the Punjab.

4. Conversely, learned counsel for respondent No.6 maintains that the said respondent was duly appointed in the year 2017 against the disability quota as he was suffering from a leg injury constituting disability at the relevant time. He further submits that the petitioner cannot claim any right of appointment at this stage as the relevant merit/eligibility list had a limited validity period of 190 days which has since expired and consequently, the petitioner neither retains any enforceable right nor *locus standi* to challenge the appointment of

respondent No.6. Further contends that order dated 01.11.2023 passed by the Director General, Social Welfare & Bait-ul-Maal, Punjab, Lahore / respondent No.9, is violative of the principles of natural justice inasmuch as no opportunity of hearing was afforded to respondent No.6 prior to the passing of the said order, therefore, the same cannot be relied upon to determine his eligibility against the quota reserved for persons with disabilities.

5. Supporting the impugned order, learned law officer contends that the petitioner's appointment was *void ab initio* being made by an authority not competent in law. He submits that the post of AEO is a BS-16 post, appointment to which falls within the exclusive domain of the Government on the recommendation of the Punjab Public Service Commission in terms of Rule 16 of the Punjab Establishment Code. It is further argued that even otherwise, any such appointment at the district level could only have been made upon recommendation of the District Level Committee.

6. In rebuttal, learned counsel for the petitioner submits that the appointment of respondent No.6 had already been assailed by the petitioner through earlier proceedings instituted within the prescribed period, pursuant whereunto directions were issued to the competent authority in that regard. He reiterates that employment under the disability quota is confined to persons suffering from permanent disability and there exists no concept of temporary disability for such purpose. According to him, respondent No.6 does not meet this criterion and as such his appointment is without lawful authority.

7. At this stage, learned counsel for respondent No.6 reaffirms that the disability of respondent No.6 is of a permanent nature and that he fulfilled all requisite conditions for appointment against the disability quota.

8. Heard. Available record perused with assistance of counsel for the parties.

9. The pivotal question requiring determination is twofold: firstly, whether the petitioner is entitled to restoration and continuation as AEO on the basis of appointment order dated 27.04.2024 and secondly, whether respondent No.6 can lawfully continue to occupy a post reserved for persons with disabilities despite the order dated 01.11.2023 passed by the Director General, Social Welfare & Bait-ul-Maal, Punjab.

10. Before adverting to the impugned orders, it is necessary to notice the statutory scheme, the Ordinance was promulgated “to provide for the employment, rehabilitation and welfare of disabled persons.” Its purpose is not to create a general mode of public employment but to protect and rehabilitate persons who, due to disability, suffer disadvantage in securing livelihood. Section 2(c) of the Ordinance defines “disabled person” as follows:

“disabled person” means a person who, on account of injury, disease or congenital deformity, is handicapped for undertaking any gainful profession or employment in order to earn his livelihood, and includes a person who is blind, deaf, physically handicapped or mentally retarded.”

Section 10 of the Ordinance requires establishments to employ disabled persons against the prescribed quota, while section 12 provides the mechanism for registration and assessment of disabled persons. Section 12(2) empowers assessment regarding the nature of functional disability and fitness for work, and section 12(5) provides that if a person is declared not to be a disabled person, his name shall be struck off the register. These provisions show that disability quota is a protected statutory arrangement for persons with disabilities and cannot be occupied by a person who does not satisfy the statutory test.

11. The statutory protection afforded to persons with disabilities is not merely a matter of administrative convenience or concession, rather it reflects a universally acknowledged commitment to human dignity, equality and meaningful participation in society. Modern constitutional and human rights jurisprudence recognizes that persons with disabilities are entitled to live with dignity, free from exclusion, marginalization and artificial barriers that hinder their social and economic integration. The reservation of posts under disability quota is, therefore, a rights-based measure intended to secure substantive equality and to create opportunities for those who, owing to physical or mental impairments, face structural disadvantages in accessing public employment. Any unauthorized occupation of such reserved posts by persons not lawfully entitled thereto not only defeats the statutory mandate but also amounts to deprivation of legitimate opportunities meant for a vulnerable segment of society. The law, thus, obligates the State and its functionaries to ensure that the benefits exclusively reserved for persons with disabilities reach the deserving beneficiaries in a transparent, fair and lawful manner so as to preserve their dignity, foster inclusion and strengthen their confidence as equal participants in the social mainstream.

This Court in the case of “Muhammad Yousaf and another v. Chairman, Federal Public Service Commission and others” (**PLD 2017 Lahore 406**) observed that persons with disabilities are entitled to equal dignity, protection and participation in society, and that the State is constitutionally bound to safeguard their legitimate interests through meaningful inclusion and reasonable accommodation. It was further emphasized that opportunities reserved for such persons must remain protected for those lawfully entitled thereto. Relevant excerpt from the said judgment is as under:-

”26. While the constitutional values and fundamental rights under the Constitution do not distinguish between a person with or without disabilities, the Constitution goes further. It provides that adequate provisions shall be made to safeguard

the legitimate interests of the minorities and backward and depressed classes. Depressed class has not been defined under the Constitution. So in our society, where State does not provide any meaningful infrastructural, financial or social support for persons with disabilities, persons with disabilities are marginalized, under-privileged, lacking choice, autonomy and opportunity; resulting in limited access to employment and good quality of life. They stand deprived of the social and economical benefits enjoyed by other citizens and tend to live or survive on the margins of the society. ...

30. Right to life, right to human dignity and right to non-discrimination guarantee that adequate provisions or reasonable accommodation be provided by the State. There should be a full recognition of the fact that persons with disability are integral part of the community, equal in dignity and entitled to enjoy the same human rights and freedoms as others. Our Constitution promotes and protects the human rights of all persons inclusive of persons with disabilities. The constitutional values of social, economic and political justice recognize free choice and individual autonomy for all. It also provides that adequate provisions shall be made to safeguard the legitimate interests of the depressed class. Our Constitution is a living document and provides a bold and a passionate constitutional support for persons with disabilities. ...”

12. Tested on the touchstone of the above principles and the statutory framework governing reservation for persons with disabilities, it is an admitted position that respondent No.6 was appointed in the year 2017 against a post reserved under the disability quota. The petitioner, being next in merit, promptly questioned the disability status of respondent No.6 and initiated proceedings within time. However, the matter remained entangled in administrative and judicial processes for a considerable period, ultimately culminating in order dated 01.11.2023 passed by the Director General, Social Welfare & Bait-ul-Maal, Punjab, whereby, on the basis of expert opinion and recommendations of the Provincial Assessment Committee, respondent No.6 was categorically declared not to be a “disabled person” within the meaning of the governing law.

13. The said declaration, which goes to the root of eligibility of respondent No.6 has neither been set aside nor shown to have been rendered ineffective by any competent forum. Nonetheless, no consequential action was taken by the concerned authorities, neither was the appointment of respondent No.6 revisited nor was the petitioner extended consideration on the basis of the merit list from which he had originally claimed entitlement. Instead of addressing the issue within the framework of the original recruitment process, the authorities appear to have adopted an *ad hoc* course by issuing a fresh appointment order dated 27.04.2024 in favour of the petitioner.

14. The impugned appointment, however, does not withstand legal scrutiny. It was not made against the same post reserved for disability quota allegedly vacated by respondent No.6 rather the same was issued against a separate vacant post. More importantly, the record does not demonstrate adherence to the prescribed recruitment mechanism applicable to the post of Assistant Education Officer (BS-16). The process neither emanated from the competent appointing authority nor reflects observance of the codal formalities governing such appointments.

15. The impugned order dated 17.11.2025 passed by respondent No.2, therefore, insofar as it holds the petitioner's appointment to be irregular and without lawful authority, is based on valid considerations. The subsequent order dated 27.11.2025, cancelling the petitioner's appointment is merely consequential. In this view of the matter, the impugned orders, to the extent they negate the legality of the petitioner's appointment through order dated 27.04.2024 do not suffer from any jurisdictional or legal infirmity warranting interference by this Court.

16. The matter cannot be examined in isolation from the foundational illegality identified by the competent forum regarding respondent No.6. The declaration dated 01.11.2023, which remains

operative, unequivocally negates the eligibility of respondent No.6 to occupy a post reserved for persons with disabilities. This determination substantiates the petitioner's original grievance and exposes a clear failure on the part of the authorities to give effect to a binding administrative adjudication. Neither the appointment order dated 27.04.2024 nor the impugned orders address this aspect in a legally meaningful manner. The continued occupation of a reserved post by an ineligible person, in the face of a subsisting declaration, renders the administrative response incomplete and legally unsustainable to that extent.

17. While the petitioner cannot derive any enforceable right from an appointment made dehors the prescribed procedure, the authorities were equally under a legal obligation to take appropriate action in consequence of the declaration dated 01.11.2023. Their failure to do so has resulted in perpetuation of an illegality, undermining the statutory scheme governing reservation for persons with disabilities.

18. For what has been discussed above, this petition is **partly allowed** in the following terms:-

i) The prayer of the petitioner for restoration and continuation of his appointment as Assistant Education Officer (BS-16) on the basis of appointment order dated 27.04.2024 is declined, the same having been made dehors the prescribed recruitment procedure and without lawful authority;

(ii) It is declared that respondent No.6 is not eligible to occupy a post reserved for persons with disabilities in view of the declaration dated 01.11.2023 passed by the Director General, Social Welfare & Bait-ul-Maal, Punjab, which holds the field;

(iii) The respondents are directed to take consequential action in accordance with law to ensure that the post reserved for disability quota is filled strictly in conformity with the statutory scheme and applicable recruitment rules, within a period of sixty (60) days from the date of receipt of a certified copy of this judgment;

(iv) It is further observed that the competent authority shall undertake the said exercise within three months afresh in a transparent and lawful manner, ensuring adherence to the mandate of the relevant law governing employment under disability quota.

19. Before parting, it is observed that public employment, particularly where it intersects with statutorily protected classes, demands scrupulous adherence to law, fairness, and institutional discipline. The present case is a reminder that administrative authorities are trustees of statutory mandates and cannot dilute or bypass them on expedient considerations. Any laxity in enforcing disability quota not only defeats legislative intent but also erodes public confidence in the fairness of the system. It is, therefore, expected that the concerned authorities shall ensure strict compliance with the law in its true spirit so that the rights of persons with disabilities are preserved, protected and meaningfully realized.

(RAHEEL KAMRAN)
JUDGE

Approved for reporting.

JUDGE